



CHAPTER 23

An Act to constitute the Presidencies of the Leeward Islands separate colonies and confer upon Her Majesty power to make, or to authorize the making of, emergency laws therefor and to establish courts therefor; to amend the West Indian Court of Appeal Act, 1919; and for purposes connected with the matters aforesaid.
[15th March, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. On such day as Her Majesty may by Order in Council appoint for the purposes of this section (in this Act referred to as "the appointed day") each of the four Presidencies which, by virtue of the Leeward Islands Act, 1871, as amended by Acts of the Legislature of the Leeward Islands, together constitute the colony of the Leeward Islands (that is to say, Antigua, Saint Christopher Nevis and Anguilla, Montserrat and the Virgin Islands) shall become a separate colony and the said Act of 1871 shall cease to have effect.

Constitution as separate colonies of Leeward Islands Presidencies. 34 & 35 Vict. c. 107.

2.—(1) The repeal of the Leeward Islands Act, 1871, shall operate to render of full effect the provisions relating to law-making powers contained in the Ordinances of the Legislatures of the said Presidencies entitled respectively the Antigua Constitution and Elections Ordinance, 1951, the Saint Christopher Nevis and Anguilla Constitution and Elections Ordinance, 1952, the Montserrat Constitution and Elections Ordinance, 1952, and the Virgin Islands Constitution and Elections Ordinance, 1954, and, as from the appointed day, the remaining provisions of each of those Ordinances shall have effect as if they had been enacted

Provisions consequential on preceding section.

by virtue of the provisions thereof which by virtue of this subsection are rendered of full effect, and so shall the provisions of any Ordinance amending it passed before that day (whether before or after the passing of this Act).

(2) Her Majesty may, by Order in Council,—

(a) in the case of each of the said Presidencies—

(i) determine, or empower any authority having functions therein or constituted therefor to determine, the laws (other than any to which the foregoing subsection applies) which, after the beginning of the appointed day, are (subject to any amendment or repeal by the Legislature of the Presidency or other competent authority) to remain valid as respects the Presidency notwithstanding its constitution as a separate colony;

(ii) adapt or modify, or empower any such authority as aforesaid to adapt or modify, to such extent as Her Majesty in Council or that authority, as the case may be, thinks necessary or expedient in view of the constitution of the Presidency as a separate colony, any laws having effect therein after the beginning of the appointed day by virtue either of subsection (1) of this section or of an exercise of powers conferred by or under the foregoing sub-paragraph; and

(b) make provision for any incidental, supplementary or consequential matters for which it appears to Her Majesty in Council necessary or expedient to make provision in view of the dissolution of the colony of the Leeward Islands.

(3) An Order in Council under this section made before the appointed day may be so framed as to enable an authority upon whom power is thereby conferred to determine, adapt or modify laws to exercise that power before that day, so, however, that no instrument by which that power is exercised shall come into operation before that day.

Power to make
emergency
laws for the
new colonies.

3.—(1) Her Majesty may, in the case of any colony constituted by section one of this Act, by Order in Council make during a period of emergency, or empower (subject to such restrictions, if any, as may be specified in the Order) such authority as may be so specified to make during any such period, such laws for the colony as appear to Her Majesty in Council or that authority, as the case may be, to be necessary or expedient for securing the public safety, the defence of the colony or the maintenance of public order or for maintaining supplies and services essential to the life of the community, and a law made

by or by virtue of an Order in Council under this subsection for a colony shall have effect notwithstanding the provisions of any other enactment applying to the colony or any rule of law having effect therein.

(2) A law made by or by virtue of an Order in Council under the foregoing subsection for a colony shall (unless previously revoked) expire at the end of the period of emergency during which it was made unless provision for its continuance in force (with or without modification) is made by the Legislature of the colony.

(3) Upon the revocation or expiry of a law made by or by virtue of an Order in Council under subsection (1) of this section, subsection (2) of section thirty-eight of the Interpretation Act, 52 & 53 Vict. 1889, shall apply as if that law were an Act of Parliament which c. 63. had then been repealed by another such Act.

(4) In this section the expression "period of emergency" means, in relation to a colony constituted by section one of this Act, a period beginning with a declaration made by such authority and in such manner as may by Order of Her Majesty in Council be prescribed in relation to the colony that a public emergency exists therein and ending with a declaration so made that a public emergency no longer exists therein.

4.—(1) Her Majesty may by Order in Council provide for the establishment, for any of the colonies constituted by section one of this Act, of courts constituted in such manner and having such jurisdiction (whether civil or criminal, original or appellate) as may be determined by or under the Order, and an Order in Council under this subsection may make provision for any incidental, supplementary or consequential matters for which it appears to Her Majesty in Council necessary or expedient to make provision for the purposes of the Order.

Power to establish courts for the new colonies.

(2) As from the appointed day—

- (a) the colonies to which the Leeward Islands and Windward Islands (Courts) Order in Council, 1939, applies shall include the separate colonies constituted by section one of this Act; and
- (b) so far as regards those colonies, that Order, and any Order in Council amending it made before the appointed day (whether before or after the passing of this Act), shall have effect as if they had been made under this section;

and the provisions of the said Order of 1939 specified in the first column of the Schedule to this Act shall, as from that day, have effect subject to the amendments respectively specified in relation

to those provisions in the second column of that Schedule (being amendments consequential on the provisions of paragraph (a) of this subsection).

Amendments
of
9 & 10 Geo. 5.
c. 47.

5.—(1) In subsection (3) of section one of the West Indian Court of Appeal Act, 1919 (which subsection specifies the persons who are to be the judges of the West Indian Court of Appeal), for the words from “The expression ‘Chief Justice’” to the end of the subsection there shall be substituted the words “Any reference in this subsection to a Chief Justice shall be construed as including a reference to a person for the time being acting in the capacity of Chief Justice”.

(2) As from the appointed day the West Indian colonies to which the said Act of 1919 applies shall include the separate colonies constituted by section one of this Act, and accordingly section one of the said Act of 1919 shall, as from that day, have effect as if, in subsection (2) of that section, for the words “the Leeward Islands”, there were substituted the words “Antigua, St. Christopher Nevis and Anguilla, Montserrat, the Virgin Islands”.

Variation and
revocation
of Orders
in Council.

6. Any power conferred by this Act to make an Order in Council shall be construed as including power to vary or revoke the Order in Council by a subsequent Order in Council.

Short title and
interpretation.

7.—(1) This Act may be cited as the Leeward Islands Act, 1956.

(2) Any reference in this Act to a Presidency shall be construed as including a reference to the dependencies (if any) thereof.

SCHEDULE

Section 4.

AMENDMENTS OF LEEWARD ISLANDS AND
WINDWARD ISLANDS (COURTS) ORDER IN COUNCIL, 1939

<i>Provision amended and Subject Matter thereof</i>	<i>Amendment</i>
Paragraph (2) of Article 1 (Colonies to which the Order applies).	For the words "and the Leeward Islands" there shall be substituted the words "Antigua, Saint Christopher Nevis and Anguilla, Montserrat and the Virgin Islands".
Paragraph (1) of Article 2 (Interpretation).	In the definition of "Public Seal", for the words "and, with reference to the Leeward Islands, the Public Seal of the Colony", there shall be substituted the words "and, with reference to the Leeward Islands, the Public Seal of any one of the Colonies comprised in the Leeward Islands". In the definition of "Law", after the words "Ordinance of the Legislature of any Colony" there shall be inserted the words "any Act of the Legislature of the Leeward Islands which, by virtue of an Order in Council under section two of the Leeward Islands Act, 1956, remains valid as respects any of the Colonies comprised in the Leeward Islands".
Paragraph (4) of Article 4 (Place of residence of judges of Supreme Court).	The words "or Presidency" shall be omitted.
Paragraph (2) of Article 14 (Appeals).	For the words "by resolution of the Legislative Councils of Grenada, St. Vincent, St. Lucia and Dominica and the General Legislative Council of the Leeward Islands" there shall be substituted the words "by resolution of the Legislative Council of each of the Colonies".
Article 19 (Saving of powers of local legislatures).	The words "or of any Presidency of the Leeward Islands" shall be omitted.

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